

**BEFORE THE OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of:

JORDAN RIVERA, a minor, by and through
the parent, DANA RIVERA,

Petitioner,

v.

RIVER OAK UNIFIED SCHOOL DISTRICT,

Respondent.

Case No. _____

**DUE PROCESS COMPLAINT
NOTICE**

20 U.S.C. § 1415(b)(7)

34 C.F.R. § 300.508

Date: April 17, 2026

I. PRELIMINARY STATEMENT

1. Petitioner Jordan Rivera (“Student”) is a student eligible for special education and related services under the category of Autism, and attends Willow Creek Elementary School in the River Oak Unified School District (“District”). This due process complaint is brought on Student’s behalf by the parent, Dana Rivera (“Parent”), who is self-represented.

2. The District has denied Student a free appropriate public education by carrying forward a reading fluency goal Student has never approached; by failing to evaluate Student’s reading after a written request; by declining to revise the goal when its own progress reports recorded that it was not met; and by failing to deliver the specialized academic instruction the operative individualized education program requires. Petitioner requests an impartial due process hearing on the problems stated in this complaint.

II. REQUIRED INFORMATION

34 C.F.R. § 300.508(b)(1)–(3).

Required element	As provided
Name of the child	Jordan Rivera
Address of the child’s residence	1418 Alder Street, Willow Creek, CA 95833
Name of the school the child attends	Willow Creek Elementary School
Date of birth	November 3, 2017
Contact for the Parent	dana.r@example.com, (555) 010-4471

III. JURISDICTION, TIMELINESS AND BURDEN

3. A parent may file a due process complaint on any matter relating to the identification, evaluation or educational placement of a child with a disability, or the provision of a free appropriate public education to the child. 34 C.F.R. § 300.507(a)(1). The complaint must allege a violation that occurred not more than two years before the date the parent knew or should have known about the alleged action, unless the State has an explicit time limitation. 34 C.F.R. § 300.507(a)(2). The violations pleaded below begin with the individualized education program dated September 8, 2025 and continue to the date of this complaint.

4. Student resides in the District, which is the local educational agency responsible for making a free appropriate public education available to Student. 34 C.F.R. § 300.101.

IV. STATEMENT OF FACTS

5. Student was found eligible for special education and related services under the category of Autism on March 11, 2024, and the individualized education program in effect before the one at issue was dated March 11, 2024. (p. 1).

6. On August 29, 2025, on the DIBELS 8 oral reading fluency measure, Student read 22 words per minute on a first-grade passage with 86% accuracy. The same document records the end-of-second-grade benchmark on that measure as 87 words per minute. (p. 1).
7. On September 8, 2025, the individualized education program team adopted an annual goal that Student will increase oral reading fluency to 60 words per minute with 90% accuracy on a first-grade passage, from a baseline of 22 words per minute, and recorded that the goal was “carried forward from the 03/11/2024 IEP with the baseline updated.” (p. 1).
8. The individualized education program dated September 8, 2025 provides 240 minutes per week of specialized academic instruction in reading, delivered in a small-group setting of no more than 4 students by a credentialed special education teacher, in the special education classroom. (p. 1).
9. The Parent consented to that individualized education program on September 8, 2025 with a written exception: “I do not agree that the reading goal is appropriate.” (p. 2).
10. In the week of October 6, 2025, the District’s service delivery log records 90 minutes of specialized academic instruction and the note “small-group reading block discontinued pending staffing; SAI provided in the general education classroom during available periods.” (p. 1).
11. The District’s progress report dated November 14, 2025 recorded 21 words per minute and 88% accuracy, and described Student as “Progressing slowly.” (p. 1).
12. On December 2, 2025, the Parent requested in writing a reevaluation of Student’s reading skills, including a full assessment of phonological processing and decoding, and asked the District to send the assessment plan. (p. 1).
13. On December 4, 2025, the District’s Director of Special Education replied that “The District will prepare an assessment plan for your consent within the required timeline.” (p. 1).
14. The District’s progress report dated January 23, 2026 recorded 24 words per minute and 90% accuracy, and described Student as “Progressing slowly.” (p. 1).
15. The District’s progress report dated March 6, 2026 recorded 23 words per minute and 89% accuracy, and states: “Goal not met. Recommend continuing the goal.” (p. 1).

16. The District's service delivery log for September 8, 2025 to February 27, 2026 records 24 instructional weeks, 4 weeks at the full 240 minutes, 20 weeks below 240 minutes, and an average of 95 minutes delivered per week across the period. The same log records that the small-group reading block was discontinued on October 6, 2025 when the reading intervention position became vacant, and that the position remained unfilled as of February 27, 2026. (p. 1).
17. On March 12, 2026, at a review the Parent had requested, the individualized education program team declined to revise the reading fluency goal, and the District issued a prior written notice. (p. 1).
18. That prior written notice explains the refusal: the team "determined that the goal remains appropriate and that Jordan is making progress toward it," and "will review the goal at the annual review in September 2026." (p. 1).
19. The same prior written notice records that the District "acknowledges that the small-group reading block was discontinued in October 2025 owing to staffing and that specialized academic instruction has since been provided within the general education classroom," and that "Compensatory services were not proposed at this meeting." (p. 1).
20. The same prior written notice records the Parent's written request of December 2, 2025 for a reevaluation and states: "The District will provide an assessment plan." (p. 1).
21. On March 14, 2026, the Parent requested in writing that the reading fluency goal be revised based on Student's current level, and that the District provide the assessment plan requested on December 2, 2025, which she had not received. (p. 1).
22. On April 2, 2026, the Parent wrote that she had received no response to her March 14, 2026 request and still had no assessment plan. (p. 1).

V. STATEMENT OF THE PROBLEMS

A. Failure to provide a free appropriate public education

34 C.F.R. §§ 300.101, 300.320, 300.324.

23. An individualized education program must be reasonably calculated to enable a child to make progress appropriate in light of the child's circumstances. *Endrew F. ex rel. Joseph F. v. Douglas Cnty. Sch. Dist. RE-1*, 580 U.S. 386, 399 (2017).

24. The goal the District adopted on September 8, 2025 was the goal from the previous program with its baseline rewritten, and Student began the year 65 words per minute below the end-of-second-grade benchmark on the same measure (paragraphs 6 and 7). Over three reporting periods the District recorded 21, 24 and 23 words per minute against a goal of 60, and its own March 6, 2026 report states that the goal was not met (paragraphs 11, 14 and 15).

25. The District answered that the goal "remains appropriate" and that Student "is making progress toward it" (paragraph 18). Its own three measurements move four words per minute across five months and end below where the second of them stood, and the report that records the goal as not met recommends continuing it unchanged. The program the District has offered since September 8, 2025 has produced no meaningful progress toward the one reading goal it sets, and the District proposes to leave it in place until September 2026.

B. Failure to evaluate appropriately and on time

34 C.F.R. §§ 300.111, 300.301–300.311.

26. A parent may request a reevaluation, and a public agency must conduct one when the parent requests it, subject to the limits in 34 C.F.R. § 300.303.

27. The Parent requested a reevaluation of Student's reading in writing on December 2, 2025, naming phonological processing and decoding as the areas to assess (paragraph 12). The District replied two days later that it would prepare an assessment plan for her consent "within

the required timeline” (paragraph 13), repeated on March 12, 2026 that it “will provide an assessment plan” (paragraph 20), and had provided none by April 2, 2026 (paragraph 22).

28. The District has never refused the reevaluation. It accepted it twice in writing and did not begin it, so consent was never sought and no assessment has been conducted in the areas the Parent named. Student’s reading has been measured only by the fluency probe the disputed goal uses, and no assessment of decoding or phonological processing exists in the record from which an appropriate goal could be written.

C. Failure to reconvene or revise the individualized education program

34 C.F.R. § 300.324(b).

29. The team must revise the individualized education program as appropriate to address any lack of expected progress toward the annual goals. 34 C.F.R. § 300.324(b)(1)(ii)(A).

30. The lack of expected progress was on the District’s own documents before the Parent asked for anything: three progress reports, the last recording the goal as not met (paragraphs 11, 14 and 15). At the review on March 12, 2026 the team declined to revise the goal (paragraph 17), and the Parent’s written request of March 14, 2026 drew no reply (paragraphs 21 and 22).

31. The District’s stated reason is that it “will review the goal at the annual review in September 2026” (paragraph 18). That is the regular annual review the program already provided for, and it postpones any change until a full school year after the baseline was set. The obligation to revise arises from the lack of progress, not from the calendar.

D. Failure to implement the services the individualized education program requires

34 C.F.R. § 300.323.

32. A public agency must make the special education and related services available to the child in accordance with the child’s individualized education program. 34 C.F.R. § 300.323(c)(2).

33. The program requires 240 minutes a week of specialized academic instruction in reading, in a small group of no more than 4 in the special education classroom (paragraph 8).

The District's own log records 20 of the 24 instructional weeks below that amount and an average of 95 minutes a week across the period (paragraph 16). The service stopped in the form the program specifies on October 6, 2025, when the reading intervention position fell vacant, and the position was still unfilled on February 27, 2026 (paragraphs 10 and 16).

34. The District acknowledges the discontinuation and its cause, and records that "Compensatory services were not proposed at this meeting" (paragraph 19). A staffing vacancy is the District's to solve. Across the 20 weeks the log records below the required amount, Student received 1,320 of the 4,800 minutes the program required, a shortfall of 3,480 minutes.

VI. PROPOSED RESOLUTION

34 C.F.R. § 300.508(b)(6).

35. The Parent proposes the following resolution:

- (a) convene an individualized education program team meeting within 15 days to adopt measurable reading goals based on current assessment data (claims A and C; 34 C.F.R. § 300.324(b));
- (b) fund an independent educational evaluation in reading and written expression at the District's expense, including assessment of phonological processing and decoding (claim B; 34 C.F.R. § 300.502);
- (c) provide 3,480 minutes of compensatory specialized academic instruction in reading, being the shortfall between the 4,800 minutes the individualized education program required in the 20 weeks the District's service delivery log records below 240 minutes and the 1,320 minutes the log records as delivered (claim D; 34 C.F.R. § 300.323); and
- (d) implement the individualized education program as written, in a small group of no more than 4 in the special education classroom, and provide the Parent the service delivery log each month (claim D; 34 C.F.R. § 300.323).

VII. RESERVATION OF RIGHTS

36. Petitioner reserves the right to amend this complaint, to raise additional issues disclosed by documents not yet produced, and to seek any other relief the hearing officer is authorized to grant.

Dated: _____

Respectfully submitted,

Dana Rivera
Parent of Jordan Rivera
Self-represented (pro se)
1418 Alder Street
Willow Creek, CA 95833
(555) 010-4471
dana.r@example.com

CERTIFICATE OF SERVICE

The Parent certifies that on the date written below a true and complete copy of this Due Process Complaint Notice was served on each office named below, by the method indicated below.

Method of service: ☐ U.S. mail ☐ Hand delivery ☐ Other: _____

Served on:

Superintendent, River Oak Unified School District, 500 Oak Valley Road, Willow Creek, CA 95833

Special Education Division, Office of Administrative Hearings, 2349 Gateway Oaks Drive, Suite 200, Sacramento, CA 95833

Dated: _____

Dana Rivera
Self-represented (pro se)

Review Notes – Remove Before Filing

Citations

Authority	Tier	Pin cite	Quoted
34 C.F.R. §§ 300.101, 300.111, 300.301–300.311, 300.303, 300.320, 300.323, 300.324, 300.502, 300.507, 300.508	1	n/a	no
Endrew F. ex rel. Joseph F. v. Douglas Cnty. Sch. Dist. RE-1, 580 U.S. 386, 399 (2017)	1	listed	no

No Ninth Circuit decision is cited. None was confirmed in this session, and an unverified citation is worse than none.

Adverse authority and expected defenses

- The District will rely on its prior written notice of March 12, 2026 to argue the goal remains appropriate and that progress was being made. Claim A answers it from the District’s own three measurements.
- The District will argue that specialized academic instruction continued in the general education classroom, so the program was implemented in substance. Claim D answers it from the minutes the log records. The Ninth Circuit’s standard for a material failure to implement was not confirmed in this session and is not cited.
- The District may argue the reevaluation request was answered because an assessment plan was promised. Claim B answers it: nothing was conducted.

Arithmetic

What	Inputs	Computation	Result
Weeks below the required minutes	24 instructional weeks logged (service log); 4 weeks at the full 240 minutes (service log)	24 - 4	20 weeks
Minutes required in those weeks	20 weeks (computed above); 240 minutes per week (IEP, service log)	20 * 240	4800 minutes
Minutes delivered in those weeks	90; 100; 60; 75; 60; 75; 45; 0; 100; 60; 75; 30; 60; 100; 45; 75; 60; 100; 45; 65 (service log, weekly entries from the week of 10/06/2025)	90 + 100 + 60 + 75 + 60 + 75 + 45 + 0 + 100 + 60 + 75 + 30 + 60 + 100 + 45 + 75 + 60 + 100 + 45 + 65	1320 minutes

What	Inputs	Computation	Result
Compensatory minutes owed	4,800 minutes required (computed above); 1,320 minutes delivered (computed above)	4800 - 1320	3480 minutes
Average minutes per week, recomputed from the District's own weekly entries	240; 240; 240; 240; 90; 100; 60; 75; 60; 75; 45; 0; 100; 60; 75; 30; 60; 100; 45; 75; 60; 100; 45; 65 (service log); 24 instructional weeks (service log)	(240 + 240 + 240 + 240 + 90 + 100 + 60 + 75 + 60 + 75 + 45 + 0 + 100 + 60 + 75 + 30 + 60 + 100 + 45 + 75 + 60 + 100 + 45 + 65) / 24	95 minutes
Words per minute below the stated benchmark at baseline	87 words per minute benchmark (IEP, p. 1); 22 words per minute baseline (IEP, p. 1)	87 - 22	65 words per minute
Limitations cutoff, two years before the planned filing date	April 17, 2026 planned filing date (statement)	2026 - 2	2024

The District's own summary states an average of 95 minutes per week and 20 weeks below 240. Both were recomputed from its weekly entries and both are correct.

For the Parent to decide

- The eligibility date and the prior program of March 11, 2024 are pleaded as background at paragraph 1. March 11, 2024 falls outside the two-year period in 34 C.F.R. § 300.507(a)(2) measured from the planned filing date. The violations pleaded begin with the program dated September 8, 2025. Whether an exception applies to anything earlier is not addressed here.
- Which party bears the burden of proof in a California special education due process hearing was not confirmed in this session. Confirm it on the official text of the California Education Code before filing.
- The 15 days in remedy (a) and the monthly log in remedy (d) are the Parent's own choices, not figures from a document.

Verification checklist

- ☐ Forum, hearing body, caption and required copies
- ☐ Filing date and limitations cutoff
- ☐ School years and programs challenged
- ☐ Residence and who holds educational rights
- ☐ Current school

- [] Service log and make-up counts
- [] Compensatory quantities
- [] Burden of proof allocation in California
- [] Every statutory, regulatory and case citation
- [] Signature block and service list